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██████████ Narrative:

Licensing Narrative: Licensing Specialist Jarred Parnell reviewed the report. A visit was conducted at the facility to review video footage on 4/15/2024 at 10:30 AM. census: 26 Video Camera: Cafeteria at 18:35 - 18:39 ██████████ attempt to enter the cafeteria, residents waiting inside become aggressive. Staff can be seen attempting to support police as residents struggle. ██████████ at 18:39. 4/17/2025, police documentation requested. 4/21/2025, police documentation received and Licensing Specialist informed. 5/6/2025 Inspection for this case is documented in 028883 - 521 - inspection report was received and uploaded to ELS.



Division of Child Care & Early Childhood Education

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521 Visit Compliance Report

Licensee: Perimeter of the Ozarks

Facility Number: 237

Licensee Address: 2466 SOUTH 48TH STREET
SPRINGDALE AR 72766

Licensing Specialist: Jarred Parnell

Person In Charge:

Record Visit Date: 4/15/2025

Home Visit Date: 4/15/2025

Purpose of Visit: Self Report Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

Licensing Specialist Jarred Parnell received three provider reports on 4/9/20215 for an incident that occurred on 4/8/2025. which stated there were multiple residents exhibiting riotous behavior which required law

enforcement intervention. Case numbers for the reported incident are 028882, 028883, 028884. The three different reports detail different aspects of the same incident. This inspection report details all information for case numbers 028882, 028883, 028884.

Standards reviewed for this investigation:

905.9 Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device, for the purpose of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort them or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

905.10. Physical restraint shall be initiated only by staff who are trained by a certified instructor in a nationally recognized curriculum, and only to prevent injury to the child, other people or property, and shall not be initiated solely as a form of discipline. The agency shall maintain documentation that staff is deemed competent in physical restraint.

907.2 Childcare staff shall be responsible for providing the level of supervision, care, and treatment that is necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards, and risks.

907.3. Staff to child ratio shall be at least one to six (1:6) during waking hours and one to eight (1:8) during sleeping hours.

Licensing Specialist Jarred Parnell conducted a visit at the facility to review video footage on 4/15/2024 at 10:30 AM for the report incident.

Census: 26

Video Camera Footage Reviews

Video time stamp is 4/8/2025 – 17:12 – 17:55

Video camera view is of the green unit.

Staff: Staff 1, staff 2

Residents: Residents 1-9

The video shows the green unit, there are two staff in view. Staff 1 is at the top of a group residents in the day room, there are other staff in the middle of the group near the door. 17:12 Resident 1 begins throwing her shoe at the light fixture. Resident 1 walks to where other residents are playing a board game on the floor and starts putting the board game pieces in her mouth. Staff 2 begins speaking to resident 1 and following the resident verbally trying to prevent the resident from eating the game pieces. During this time, resident 6 can be seen throwing her shoe at the light fixture. At 17:14, support staff enter the room (staff 3 and staff 4). At 17:15 resident 1 can be seen in the hallway with 3 staff throwing her shoe at the light. Staff 5 enters the room at 17:15 and holds the resident's hands to calm her down and get the game pieces from resident 1. At 17:18 Resident 1 pushes the unit door open as staff 2 is coming back into the unit. Staff can be seen trying to block the resident outside of the door, the resident drops to the ground and crawls through the staff. Resident 1 walks through the milieu and sits down. Resident 1 can be seen putting another game piece into her mouth and appears to swallow. Resident 1 can be seen in the milieu with staff 4 and staff 3 walking back and forth through the milieu. Staff 6 enters at 17:25. The staff can be seen talking to the resident and trying to verbally deescalate. At 17:36 resident 1 attempted to jump behind the desk in the milieu. Two staff can be seen moving

to the green unit, staff 7 and staff 6, who also go into the green unit shortly after. At 17:37 resident 1 jumped behind the desk of the milieu. Staff 3 and staff 4 attempt to restrain resident 1 who drops to the floor and begins struggling. From the green unit two residents push through the door as staff 9 is going in and staff 7 is leaving. The door isn't shut and residents 6 and 5 begin moving from the green unit into the milieu. Resident 5 jumped off the milieu desk and was caught by staff 3. Resident 5 is restrained by staff 8. Resident 5 is sitting on the floor with resident 1. The two residents, 5 and 1, can be seen in the desk area of the milieu with staff 3, 4, 6, and 10. Staff 7 and staff 8 can be seen talking to the residents to deescalate. Staff and residents can be seen in the desk area when law enforcement arrives at 7:54. Resident 1 and resident 10 were subsequently arrested.

Video Camera Review #2

Video timestamp is 4/8/2025 – 17:13 – 19:17

The video camera is in the orange unit.

Staff: staff 4, staff 6, staff 7, staff 11, staff 12

Resident: resident 10

Video camera view shows resident 10 and staff 4, 7, and 11 in the day room on the orange unit. Staff 4 walked out of the room at 17:13. At 17:14 the resident begins standing on furniture and trying to flip over a chair. Staff 7 and staff 11 attempted to stop the resident from moving the furniture. The resident can be seen trying to stand on top of the furniture to break the light covering. At 17:14:40 the resident can be seen swinging at the staff. Staff 6 enters the room at 17:14:57. Resident grabs staff 11 walkie talkie and appears to speak into the walkie talkie. Staff 7 is hit in the face at 17:15. A restraint hold is then initiated by Staff 11. Staff 12 enters the room at 17:15:57. The restraint hold ends at 17:19. The resident processes with Staff 12. The resident is later arrested by law enforcement at 19:17.

Video time stamp is 4/8/2025 18:35 - 18:39

The video camera view is in the cafeteria.

Residents who were not involved in the incidents on other units were moved to the cafeteria for safety.

Law enforcement attempted to enter the cafeteria at 18:35 residents can be seen waiting inside. When the officer attempts to walk into the cafeteria, residents can be seen reacting and moving across the room. Police begin subduing and cuffing two residents near the door.

Staff Inquiries

During the visit, licensing specialist inquired as to why resident 1 was not restrained in order to remove the objects from her hand. Staff 12 and facility risk manager stated the resident is violent and a restraint posed a higher risk to staff and resident 1 over allowing the resident to keep the board game pieces and put them in her mouth. Furthermore, support staff were required at multiple incidents taking place during this time. The extra support staff needed to safely restrain resident 1 was needed elsewhere.

After reviewing video footage for reports 028882, 028883, 028884 and speaking to risk management and nursing staff at the facility. Perimeter of the Ozark is found to be in compliance for the following standards:

905.9 Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device, for the purpose of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort them or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

905.10. Physical restraint shall be initiated only by staff who are trained by a certified instructor in a nationally recognized curriculum, and only to prevent injury to the child, other people or property, and shall not be initiated solely as a form of discipline. The agency shall maintain documentation that staff is deemed competent in physical restraint.

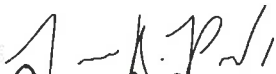
907.2 Childcare staff shall be responsible for providing the level of supervision, care, and treatment that is necessary to ensure the safety and well-being of each child at the facility, taking into account the child's age, individual differences and abilities, surrounding circumstances, hazards, and risks.

907.3. Staff to child ratio shall be at least one to six (1:6) during waking hours and one to eight (1:8) during sleeping hours.

***** Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.

Provider Comments:

CCL Staff Signature :



Date: 4/15/2025

Provider Signature :



Date: 4/15/2025